Ashok Buxi Son Of Sri Jodh Buxi And Smt. ... vs State Of U.P. And Smt. Geeta Buxi Wife Of ... on 13 November, 2006

Equivalent citations: I(2007)DMC507

JUDGMENT

Barkat Ali Zaidi, J.

1. Wife filed a complaint (No. 1088 of 1999) against the husband and ten other relatives for non-return of Stridhan property under Section 406 Indian Penal Code and the Magistrate (A.CJ.M.) Agra issued process. Two of the eleven accused , named above, being the brother and the wife of husband's brother have come under Section 482 Cr.P.C. to quash the proceedings.

2. The complainant-Opp.Party No. 2 has mentioned the Stridhan given in para No. 6 of the complaint, and the list annexed which are as follows:

(i) Cash amount of Rs. 35,000/-

(ii) One Bajaj Chetak Scooter.

(iii) One Big Almirah.

(iv) Polar Ceiling Fan.

(v) Two HARS of Gold and

(vi) One Ring of Gold

(vii) Etc.

3. It was mentioned in the complaint that she was turned out of the house by his Kinsmen while the husband had gone out of the country and they retained the Stridhan item for themselves. A notice was also given for return of Stridhan property by the wife (Opp. Party No. 2) to the accused but the Stridhan property was not returned and thereafter, she filed this complaint.

4. The two petitioners, who have come to this Court, who are husband's brother and his wife, are residing at Bombay since 1980 i.e. since before the marriage of the complainant wife and the petitioner No. 1 (Sri Ashok Baxi) is an employee in Taj Hotel, Bombay. A certificate of Taj Hotel, Bombay has been filed to this effect.

5. There is no allegation that the petitioners took any Stridhan to Bombay for their own use, and, there is no likelihood of their having appropriated any Stridhan property of the wife. This is an illustrative of the reckless and ruthless manner for which the accused have been arrayed in this complaint.

6. The other aspect is that the complaint seems to be barred, prima-facie by Limitation. Marriage of the complainant-Opp.Party took place at Udaipur. She alleges that she was turned out of the house by the accused on 13.4.1996. The Limitation for filing the complaint under Section 406 Indian Penal Code is 3 years from the date of entrustment as provided in Section 468(2)(c) Cr.P.C. The complaint, therefore, be deemed to have been filed beyond Limitation and becomes un-maintainable on this ground.

7. There is another ground on which complaint seems to be unmaintainable in the court at Agra, and that is, that, the marriage of the complainant took place in Udaipur, and the Stridhan items are naturally delivered at the time of marriage and must have been so delivered at Udaipur. It is , therefore, the Udaipur Court, which will have the jurisdiction. It is for the first time, in this Court, in her counter affidavit that the wife-Opp. party has mentioned that the Stridhan property was given 3 days before marriage at Agra. At first, no such thing was mentioned either in the notice nor in the complaint. This has now been deliberately inserted in order to bring the matter within the jurisdiction of Court at Agra. The contention that the Stridhan property was given even before the marriage is obviously a manipulated move to bring the matter within the jurisdiction of Agra Court. The Agra Court, therefore, seems to have no jurisdiction to entertain the complaint.

8. Besides limitation and jurisdiction, even on merits, the complaint's case against so many of her husband's relatives seems infirm and depreciated. The reason is that there is no clear mention of any entrustment of Stridhan property to any particular accused, which is necessary for constituting the offence under Section 406 Indian Penal Code. There is a general averment about so many accused about retaining the property. It would be appropriate to quote here the observations made in case of Vinod Kumar Goyal v. Union Territory 1991 Cri. LJ., 2333 (P & H), which is as follows:

> As to criminal breach of trust by a spouse, it may, however, be opposite that mere allegations in the complaint either concerning entrustment of articles of dowry constituting Stridhan to all the accused, or, their refusal to return such articles of dowry to the complainant wife at a later stage, would not per se be sufficient to make out a prima-facie case for commission of offences punishable under Section 405 or Section 406 I.P.C. against any particular accused. In the absence of clear, specific and unambiguous allegations concerning entrustment of specific articles of dowry to any particular accused and in the absence of further allegations against him that he had dishonestly or with malafide intention retained the same and had refused to return those articles to the wife for whose exclusive use such article were allegedly entrusted to him, no prima-facie case for commission of such offence would be made out against that particular accused. Normally, in the cases relating to commission of offence of criminal breach of trust punishable under Section 406 of the Indian Penal Code, a particular accused can prima-facie be said to be responsible only for his

individual acts and cannot be fastened with joint or vicarious liability.

9. The requirement of Section 406 Indian Penal Code being attracted as enumerated in the aforesaid case, cannot be said to be available in the present case, because, there is no clear mention of the entrustment of items to any particular accused and there is only a general and vague statement that all the accused have usurped the property. Even on merits, the case of the complainant- wife is unsuccessful.

10. In view of the aforesaid circumstances, the continuation of the proceedings in the wife's complaint would obviously be an abuse of process of Court, and the proceedings, need to be brought to a close.

11. The relief need not, therefore, be conferred to petitioners and where this Court finds, as here, that that continuation of the proceedings is wholly unwarranted and unjust, the Court should terminate the same even in respect of other accused, who have not specifically approached this Court.

12. In the result, the proceedings initiated on the basis of complaint in question shall stand terminated.

13. A copy of this order be sent by the Registry forthwith to Addl. Chief Judicial Magistrate through District and Sessions Judge, Agra for information and compliance.